

FRANCE TRAVAIL data breach action

[Association], a certified consumer association, seeks **€[to be set]** to fund a French collective damages action (action de groupe) against FRANCE TRAVAIL on behalf of 36,820,828 victims.

Source decision: CNIL Délibération SAN-2026-003 du 22 janvier 2026

Legal basis: GDPR art. 32

Status: appeal status not stated in the decision

Platform assessment · 3 strong · 1 medium · 3 weak · 7 red flags · 18 claims checked against the decision: 15 supported, 0 to check, 1 overstated, 2 unsupported · details on page 2

DRAFT FOR LEGAL REVIEW · generated from the CNIL decision · every quote is checked word for word against the decision · values in [brackets] are to be provided

Type of harm

IS THE HARM QUANTIFIED?

☐ Quantified

☐ Quantifiable

☒ To be proven

NATURE

☒ Financial

☒ Non-material

☐ Overcharge

☐ Loss of chance

Risk of fraud (e.g., with leaked NIR) and non-material harm such as distress or fear of misuse of personal data, including sensitive health-related data.

« les attaquants ont accédé aux données de [...] (nom d'usage, nom de naissance, prénom, sexe, date de naissance, NIR, adresse, code postal, numéro de téléphone, adresse électronique, adresse géographique (région d'appartenance), référence individuelle, statut de demandeur d'emploi (inscrit, radié ou identifié), date de début et de fin d'inscription) » (p. 3) ✓ **verbatim**

Victims

NUMBER CNIL decision

36,820,828

persons

IDENTIFIABLE?

☒ Yes

☐ Partly

☐ No

« les attaquants ont exfiltré de cette manière 25 giga octets (Go) de données concernant 36 820 828 personnes » (p. 3) ✓ **verbatim**

CATEGORY

☒ Consumers

☐ Businesses

☐ Retail investors

☐ Employees

☒ Other

Proof of class membership: Notification of the personal data breach by FRANCE TRAVAIL

Subgroups: Persons inscribed with FRANCE TRAVAIL over the last 20 years; Persons not inscribed as job seekers but with a candidate account on 'francetravail.fr'

« les attaquants ont exfiltré de cette manière 25 giga octets (Go) de données concernant 36 820 828 personnes vers des plateformes d'hébergement externes. Cela correspond aux données non seulement des personnes inscrites auprès de FRANCE TRAVAIL au cours des 20 dernières années, mais également de celles non inscrites sur la liste des demandeurs d'emploi mais possédant un espace candidat sur le site web » (p. 3) ✓ **verbatim**

Defendant

NATURE

☐ Private company

☐ Listed group

☒ Public body

☐ Association or union

SOLVENCY

To be provided

☐ Low

☐ Medium

☐ Strong

Indicators: revenue [], group [], insurance [], competent court administrative

Assumption

« L'opérateur FRANCE TRAVAIL (ci-après, "l'opérateur" ou "l'organisme") sis Le Cinetic 1-5, 1 avenue du Docteur Gley à Paris (75020), est un établissement public administratif placé sous la tutelle du Ministère chargé de l'emploi. FRANCE TRAVAIL est doté de l'autonomie financière. » (p. 2) ✓ **verbatim**

Value of the claim

Total = victims who opt in × compensation per victim **Computed**

Scenario	Opt-ins	€ / victim	Total
Low (0.5%)	184,104	€50	€9.2M
Base (2%)	736,417	€50	€36.8M
High (5%)	1,841,041	€50	€92.1M

FUNDING SOUGHT

€[] M

FUNDER'S SHARE

Assumption

30%

Opt-in rates and € per victim are assumptions (rate based on: identity, contact). Benchmarks: minimum claim of €2-4M in France; investment of about 1/10 of claim value (European Commission study, 2025).

Timeline

Expected duration: [] years · Limitation period ends: [date]

Facts

Feb.–Mar. 2024

Source decision

22 Jan. 2026

Filing

[target date]

Judgment on liability

[estimate]

Victims opt in

[period]

Compensation paid

[estimate]

« L'attaque, qui s'est étendue du mardi 6 février au mardi 5 mars 2024, a ciblé spécifiquement des comptes de salariés CAP EMPLOI. » (p. 3) ✓ **verbatim**

FUNDING FRAMEWORK · ART. 16, FRENCH LAW OF 30 APRIL 2025

☐ No funder influence over the conduct of the action

☐ Funding publicly disclosed

☐ Written conflict-of-interest policy

☐ Funder has no ties to the defendant

Ticked only by the association.

THE ASSOCIATION

[Name], certified since [date]

Statutory purpose: [link to the action]

Counsel: [law firm]

Contact: [name, role, email]

Platform assessment

Independent check by the platform against the CNIL decision. Cannot be edited by the association. No probability of success is given. Checked 4 Oct. 2026.

The CNIL decision confirms a GDPR Article 32 breach by FRANCE TRAVAIL affecting 36.8 million individuals with sensitive data exposed. However, the defendant is a public body, and the pitch relies on unverified assumptions for harm and recoverability.

Fault established	STRONG	CNIL explicitly found a breach of GDPR Article 32 (security of processing) with detailed findings on technical and organisational measures. « FRANCE TRAVAIL a manqué à ses obligations issues de l'article 32 du RGPD » (p. 14) ✓ verbatim · page corrected
Data sensitivity	STRONG	Breach exposed NIRs, names, birth dates, addresses, and other sensitive identifiers, with health-related data processed in the system. « les attaquants ont accédé aux données de [...] » (p. 3) ✓ verbatim · trimmed by code, check support
Group size	STRONG	36,820,828 individuals were affected by the breach, a very large group. « 25 giga octets (Go) de données concernant 36 820 828 personnes » (p. 3) ✓ verbatim
Harm evidence	MEDIUM	Risk of fraud (e.g., with NIR) is supported, but no evidence of actual fraud or misuse is provided in the decision. « les données ont été extraites 25 Go de données » (p. 3) ✗ not found in decision
Victim notification failure	WEAK	The decision does not state whether or how victims were notified, only that CNIL was notified.
Defendant	WEAK	Defendant is a public body (FRANCE TRAVAIL), which limits recoverability and requires administrative court route. « est un établissement public administratif » (p. 2) ✓ verbatim
Recoverability	WEAK	Recovery scenarios are assumptions with aggressive opt-in rates (0.5% to 5%) and no evidence of actual harm or opt-ins.

Red flags to check before committing

- ▶ Appeal status: The decision can be appealed before the Conseil d'État within two months of notification.
- ▶ Limitation period: Verify the applicable limitation period for GDPR claims in France.
- ▶ Standing of the association: Confirm the association has legal standing to represent the victims under French law.
- ▶ Victim notification: The decision does not confirm whether or how victims were notified; this may affect class membership proof.
- ▶ Public body defendant: FRANCE TRAVAIL is a public body, which may limit damages and require administrative court proceedings.
- ▶ Health data exposure: The decision confirms health-related data was processed but does not explicitly state it was exposed in the breach.
- ▶ Actual harm: No evidence of actual fraud or misuse of data is provided in the decision.

Claims in this brief checked against the decision

15 supported

0 to check

1 overstated

2 unsupported

7 assumptions

The full list of claims with quotes is in the investor view.

Summary of the decision

Délibération SAN-2026-003 du 22 janvier 2026. Plain-language summary; each sentence is followed by the passage of the decision that supports it.

1. France Travail was sanctioned by the French data protection authority, the CNIL.

« Délibération de la formation restreinte n° SAN-2026-003 du 22 janvier 2026 prononçant une sanction pécuniaire à l'encontre de l'opérateur FRANCE TRAVAIL » (p. 1) ✓ verbatim

2. A cyberattack via social engineering targeted CAP EMPLOI advisor accounts, leading to a data breach.

« L'attaque a été menée par des techniques dites " d'ingénierie sociale " » (p. 3) ✓ verbatim

3. The breach exposed data of 36,820,828 people, including names, birth dates, NIRs, addresses, phone numbers, emails, and employment status.

« les attaquants ont exfiltré de cette manière 25 giga octets (Go) de données concernant 36 820 828 personnes » (p. 3) ✓ verbatim

4. The CNIL found France Travail failed to implement appropriate technical and organisational measures under Article 32 of the GDPR.

« la formation restreinte considère que FRANCE TRAVAIL a manqué à ses obligations issues de l'article 32 du RGPD » (p. 14) ✓ verbatim · page corrected

5. The CNIL also found insufficient access restrictions, as CAP EMPLOI advisors could access all data in the database, not just the records of people they supported.

« FRANCE TRAVAIL n'a pas limité l'accès aux données aux seules personnes ayant besoin d'en connaître » (p. 13) ✓ verbatim

6. France Travail notified the CNIL of the breach on 8 March 2024, with a supplementary notification on 15 May 2024.

« Le 8 mars 2024, FRANCE TRAVAIL a procédé à une notification de violation de données auprès de la CNIL, complétée le 15 mai 2024 » (p. 3) ✓ verbatim

7. The affected individuals were informed of the breach by France Travail.

« les personnes concernées ont déjà été informées de la violation de données » (p. 19) ✓ verbatim

8. The CNIL imposed a fine of €5,000,000 on France Travail for the GDPR breach.

« prononce à l'encontre de FRANCE TRAVAIL, une amende administrative d'un montant de cinq millions d'euros (5 000 000 €) » (p. 20) ✓ verbatim